

Landis v. North American Co. (1936) 299 U.S. 248, 254.) “Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (*Freiberg v. City of Mission Viejo* (1995) 33 CalApp.4th 1484, 1489.)

Analysis

As outlined above, the UD action underlying this Motion has been completely resolved. Accordingly, there is nothing left to stay. In other words, the current Motion is moot. A case becomes moot when “the question addressed was at one time a live issue in the case,” but has lost its life “because of events occurring after the judicial process was initiated.” (*Younger v. Superior Court* (1978) 21 Cal.3d 102, 120.) “[T]he duty of this court ... is to decide actual controversies ... and not to give opinions upon moot questions or abstract propositions....” (*Consol. etc. Corp. v. United A. etc. Workers* (1946) 27 Cal.2d 859, 863.)

As the underlying UD action has been completely resolved, Plaintiff has already appealed that decision – which was dismissed, and Plaintiff has already been removed from and vacated the Property, there is no longer any case to be stayed. Arguably the motion to stay the UD action ought to have been filed in the UD action. But whether filed there or here, there is no longer any live motion requiring decision.

Conclusion

Plaintiff’s motion to stay the unlawful detainer action, case no. MS25-0977, is **denied as moot**.

11. 9:00 AM CASE NUMBER: C25-03663
CASE NAME: CAILYN USHER VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
FILED BY: SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant school district moves to set aside its default, which apparently resulted from a mix-up of internal communications on the defense side about appointing counsel to represent the district. The motion is unopposed, and it is **granted**. Defendant may file and serve an answer by June 18. This should have been handled by stipulation, as it appears that plaintiff was willing to so stipulate with only minor and conventional added details.

12. 9:00 AM CASE NUMBER: C26-00046
CASE NAME: STEVEN SMITH VS. JESSICA ZAPRUDER
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: ZAPRUDER, JESSICA
TENTATIVE RULING:

Before the Court is the Zapruder defendants’ demurrer to plaintiff Smith’s First Amended Complaint for (1) negligence (against Jessica Zapruder and Michael Zapruder), (2) breach of contract (against Jessica Zapruder and Michael Zapruder), and (3) breach of contract (against Marjorie Zapruder).

For the following reasons, the demurrer is **sustained with leave to amend**.